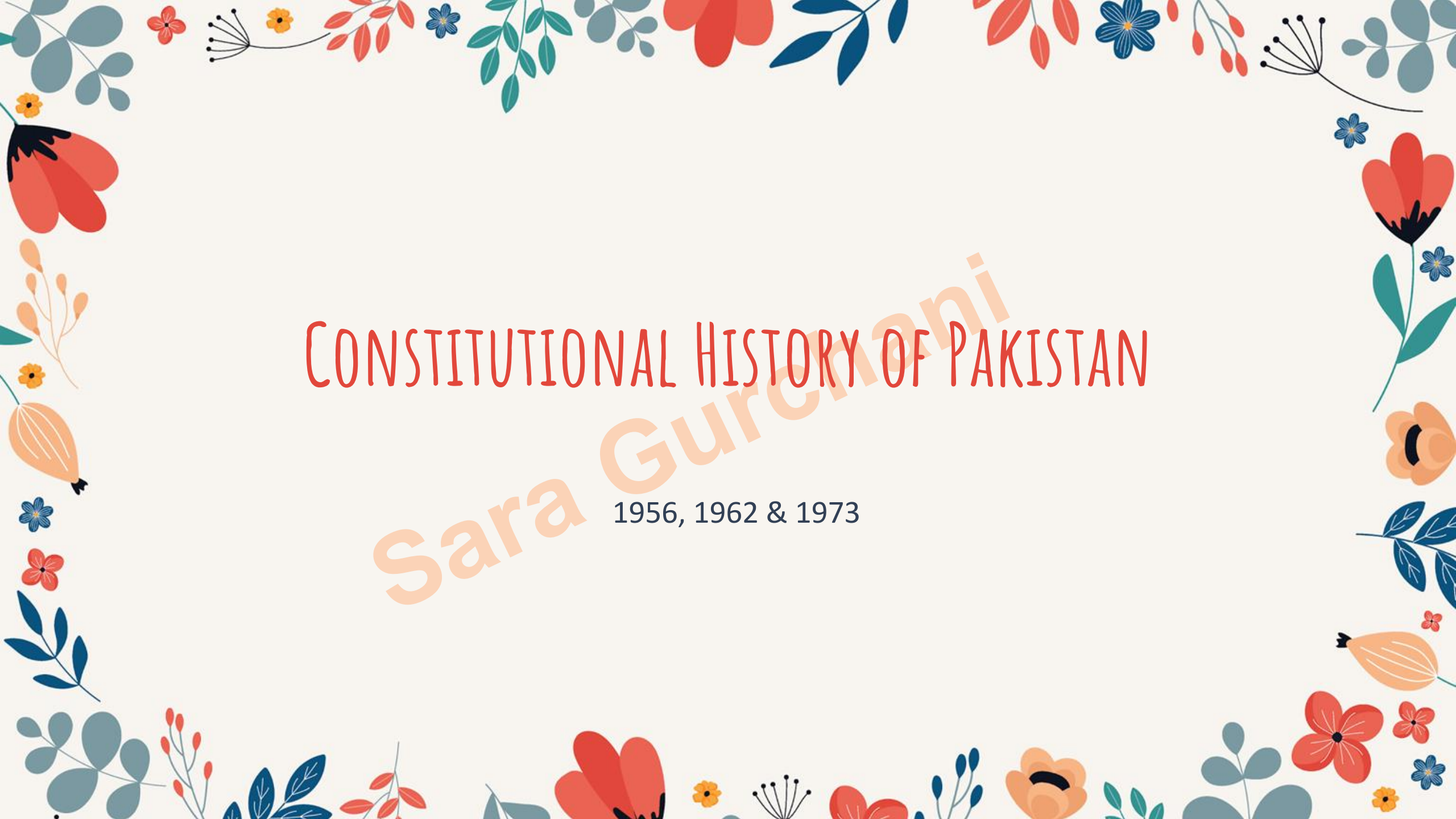


A decorative border of various flowers and leaves in shades of red, blue, orange, and green surrounds the central text.

CONSTITUTIONAL HISTORY OF PAKISTAN

1956, 1962 & 1973

Constitutional History of Sub-Continent Under British Raj

- An Act for the Better Government of India 1858.
- Indian Council Act of 1861.
- Indian Council Act of 1892.
- Indian Council Act of 1909 or (Morley-Minto reforms).
- The Government of India Act 1919 or (Montagu-Chelmsford Reforms)
- The Government of India Act of 1935

Objectives Resolution of 1949

On 12th march the constituent assembly passed a resolution know as '*objectives resolutions*'

The main spirit of the objective resolution is as follow:

- 1- Sovereignty over the entire universe belongs to Allah and authority delegated to people by him.
- 2- Observance of democracy, freedom, equality and social justice guided by Islam.
- 3- Rights of minorities to be ensured.
- 4- Fundamental rights to be guaranteed.
- 5- Independence of Judiciary and Federal form of government.

The Constitution of Pakistan 1956

- Prime Minister Chudary Muhammad Ali gave special attention to Constitution and the 4th draft of constitution was presented before assembly on 8th January 1956 and was adopted.
- It was approved on 29th February 1956 by the assembly.
- On 2nd March 1956 Governor General signed the constitutional bill 1956.
- On 23rd march 1956 Pakistan became Islamic republic of Pakistan.

Islamic Provisions of Constitution of Pakistan 1956

- 1-The name of the country was Islamic Republic of Pakistan
- 2- Objective resolution became the preamble for 1956 constitution.
- 3- The moral teaching of Islam would be encouraged and vices such as gambling, drinking and prostitution would be curbed.
- 4- *Zakat and Auqaf*: The government was instructed to collect and administer alms and trusts.
- 5- Article 24 of the constitution obliged Pakistan to maintain friendly relation with Muslims countries.
- 6- No law repugnant to Islam was to be passed.
- 7- Under article 197 the government was required to set up an Islamic research Institute to examine laws.
- 8- The President would be an male adult Muslim.

Main features of Constitution of Pakistan

1956

1- President:

- President is the chief executive, titular/nominal head of the state.
- He should be Muslim and 40 years of age.
- He will appoint Prime Minister, Provincial Governors, Judges of Supreme Court, Auditor General, Advocate General.
- He Could Summon, prorogue and dissolve National Assembly.

2- Prime Minister:

- PM was the head of government and the leader of the house (NA) and cabinet.
- He could be removed by the President.

Main features of Constitution of Pakistan 1956

3- National Assembly:

- National Assembly is composed of President and the members of National Assembly.
- It consisted of 300 members equally divided between the two wings (East and West Pakistan).
- 10 seats were reserved for women, 5 for each wings.
- National Assembly has control over Finance.

4- Governors:

- Appointed by the President.
- Representatives of Federation in Provinces.
- They appoint Provincial Chief Ministers.

Main features of Constitution of Pakistan 1956

5-Provincial Assemblies:

- Pakistan was converted in two *One Unit System* (East and West Pakistan)
- Each Assembly had 80 seats out of which 10 seats were reserved for women.

6-Supreme Court:

- Supreme Court was to headed by a chief Justice who was to be appointed by the President.

7-High Courts:

- Each Province had a high court which was also headed by Chief Justice appointed by the President.

Note: Constitution of 1956 consisted of 234 articles divided in 13 parts and 6 schedules.

Note: General Muhammad Ayub Khan through coup de ta /Martial Law taken over Pakistan on 8th October 1958 and on 27th October declared himself as the Head of the State.

A decorative border of various flowers and leaves in red, blue, orange, and teal colors surrounds the central text.

CONSTITUTION OF 1962

Sara Gurchani

The 1962 Constitution of Pakistan

- On 17th February 1960, General M. Ayub Khan appointed a constitutional Commission under Justice Shahab-ud-din as chairman.
- The commission submitted a thorough report on 6th May 1961 to President Ayub.
- After Governors conference in 1962 in Rawalpindi, on 1st March 1962 General M. Ayub Khan announced his one-man constitution.
- The 1962 constitution contained 250 articles, divided in twelve parts and three schedules.

The 1962 Constitution of Pakistan

- **Islamic Provision of 1962 Constitution:**

- 1) Initially the country was called the Republic of Pakistan, but by its 1st amendment on 25th December 1963, the word Islamic was added
- 2) The objective resolution was again retained as preamble Only the word Islam was substituted with 'Quran and Sunnah'
- 3) The government would provide necessary education of Quran and Islamiyat to Muslim Students.
- 4) An Islamic Advisory Council would be set up.
- 5) For framing Islamic Laws, an Islamic Research Institute was set up and its head office in Islamabad and two provincial office in Lahore and Dhaka.

Main highlights of 1962 Constitution of Pakistan

- The 1962 Constitution was a Presidential form of government supported by Basic democracies system.
- Basic democracies system consisted of eighty thousand elected members forty thousand east and forty thousand west Pakistan, which was responsible for the provincial, national assemblies election and as the electoral college for the Presidential election.
- The Post of Prime Minister was removed.
- National Assembly was responsible for making laws.
- Judiciary was meant to interpret the laws.

Basic Democracies order Model



Salient features of 1962 Constitution

1. **President:**

The age of the president would not be less than 35 years.

The President would be Muslim adult male.

President would be elected by the electoral college (Basic Democrats and National Assembly).

President could be removed by National Assembly through impeachment.

The term of President office would be five years.

Salient features of 1962 Constitution

2- National Assembly:

- Unicameral System(One House) and the term of National Assembly would be four years.
- There were 156 members in total. Out of these 150 were general seats and 6 were reserved for women.
- The seats were equally divided between the wings (East and West Pakistan)
- National Assembly had the power to impeach the President.

3- Governors:

- Governors were appointed by the President.
- Executive head of the Provinces.
- Governors controls the provincial assemblies like the President controls National Assembly.

CONSTITUTION OF 1973

Sara Gulchani

The 1973 Constitution of Pakistan

- On 17th April 1972, National Assembly appointed a committee of 25 members under Law minister Mahmood Ali Kasuri for drafting new constitution.
- On 21st April 1972, Martial law was lifted.
- Later M. Ali Kasuri was replaced by Abdul Hafeez Pirzada and he presented the 1st draft of constitution on 2nd February 1973.
- On 16th March 1973 United democratic Front (UDF) sent their demands to Z. A. Bhutto and on 9th April Bhutto and UDF had meeting on demands and changes in draft.
- On 10th April 1973, National Assembly Unanimously passed the 1973 constitutional bill.
- The 1973 Constitution consists of 280 articles, 12 parts and 6 schedules.

Islamic Provision of 1973 Constitution

- Islam was declared as the State religion.
- Objectives resolution was adopted as preamble.
- Every law passed should be in accordance with Quran and Sunnah.
- The government of Pakistan would take the responsibility of printing the Holy Quran under article 31.
- The government would provide for the promotion of Arabic language.
- A Council of Islamic Ideology (CII) would be formed.
- The 2nd amendment to 1973 constitution declared all Ahmadis and Quaidianis as non Muslim.

Salient Features of 1973 Constitution of Pakistan

- **1- President:**

- President would be adult male Muslim not less than 45 years.
- He would be elected by a Joint session of the parliament for five years.
- No President could be elected for more than two terms and President is the ceremonial Head of the State.

2- Prime Minister:

- PM is the executive and central head of the government.
- PM is elected by National assembly from the majority party after 30 days of general elections.
- Prime Minister after his/her election form cabinet of Ministers.

Salient Features of 1973 Constitution of Pakistan

3- Parliament:

- The Parliament according to 1973 constitution is Bicameral (Two Houses: National Assembly and Senate)
- i. **National Assembly:**
 - The Term of National Assembly would be five years.
 - According to the original draft of 1973 constitution the total number of seats for National Assembly were **207** (General) + **10** (Women) = **217**.
 - According to General Election order of 2002 the number of seats of National Assembly were increased to **342** (**272** seats were General, **60** seats were reserved for women and **10** seats for minorities).
 - Provinces wise distribution of NA seats (Punjab-**183**, Sindh-**75**, KP-**43**+Ex-FATA -**12**, Balochistan-**17**, Federal Capital-**2**).

Salient Features of 1973 Constitution of Pakistan

2-Senate (Upper House):

- Senate is called as permanent body with 104 seats.
- One half of the members elected by Provincial Assemblies would retire after three years.
- Every Province is having **23** seats, Ex-FATA-**8** seats and Federal capital areas **4** seats.
- The members of erstwhile FATA and Federal Capital areas were elected by National Assembly.

5- Provincial Assemblies:

- The term for Provincial Assemblies would 5 years.
- The number of provincial assemblies seats are as follow: (Punjab- 372 seats, Sindh- 168 seats, KP- 124+erstwhile FATA and Balochistan-65 seats).

Salient Features of 1973 Constitution of Pakistan

6- Judiciary:

- Supreme Court is headed by Chief Justice and its function is to interpret the law and advise the parliament and government on legal matters.
- Each Province is having a High Court Head by Chief Justice

Supreme Court Of Pakistan

